【英语一】 2013 阅读 Text4

基础大纲词 精读补充词 核心重难词
常考大纲短语 核心精读短语 考点长难句

P1 ① On a **five to three vote** (5:3的投票), the **Supreme Court** (最高法院) **knocked out** (推翻，破坏) much of Arizona's immigration ([美国]亚利桑那州的移民) law Monday — a **modest** (不太大的) policy (政策) victory for **the Obama Administration** (奥巴马政府，奥巴马任期内的美国政府). ② But **on the** (在…的问题上) more important **matter of** the Constitution (宪法), the decision was an 8-0 defeat for the Administration (〔尤指美国〕政府)'s effort to upset (打破（平衡）) the balance (平衡) of power between the **federal government** (美国联邦中央政府) and the states (州).

P2 ① In **Arizona v. United States** (亚利桑那州诉美国政府案。「A v. B」表示「A诉B案」。), the majority (大多数（法官）) overturned (推翻) **three of** (…中的三个) the four contested (争议中的) provisions (条款) of Arizona's controversial (有争议的) plan to have state (州) and local (地方的) police enforce (执行（法律）) federal (联邦的) immigrations law. ② The **Constitutional principles** (宪法原则) that Washington alone has the power to "establish a uniform **Rule of Naturalization**" (统一的 归化条例) and that federal (联邦的) laws precede (高于) state (州) laws are noncontroversial. (无争议的) ③ Arizona had **attempted to** (试图) fashion (制定（利用想象力或者聪明才智创造）) state (国家) policies (政策) that **ran parallel to** (和…并行) the existing federal (联邦的) ones.

P3 ① **Justice Anthony Kennedy** (大法官安东尼·肯尼迪), **joined by** (以及) **Chief Justice John Roberts** (首席大法官约翰·罗伯茨) and the Court's liberals (自由派的（大法官）), ruled (自由派的裁定) that the state (州（政府）) **flew too close to the sun** (〔得意忘形〕肆意挑衅权威). ② On the overturned (被推翻的) provisions the majority (大多数) held (认为) that Congress (国会) had deliberately (经过深思熟虑地) "**occupied the field**" (先占领域，美国国会先占住领域之后，各州政府将失去补充法案的空间。) and Arizona had thus **intruded on** (侵犯) the federal's (联邦的) **privileged powers** (特权).

P4 ① However, the Justices (法官，此处代指前文提到的大法官。) said that Arizona police would **be allowed to** (被允许做某事) verify (核查) the legal (法律（上）的) status (身份) of people who **come in contact with** (遇到…) **law enforcement** (执法（过程）). ② That's because Congress (国会) has always envisioned (设想) joint federal-state immigration enforcement and explicitly (明确地) **encourages** (鼓励某人做某事) state (州的) officers **to** share information and **cooperate with** (与…协作) federal (联邦的) colleagues (同行（指联邦警员）).

P5 ① Two of the three objecting Justices (大法官) — **Samuel Alito** ([人名]塞缪尔·阿里托) and **Clarence Thomas** ([人名]克拉伦斯·托马斯) — **agreed with** (赞同) this Constitutional logic (逻辑) but disagreed about which Arizona rules **conflicted with** (与…相冲突) the federal (联邦的) statute (法规). ② The only major objection (异议) **came from** (来自于) **Justice Antonin Scalia** (大法官安东尼·斯卡利亚), who offered an even more robust (强有力的（辩护）) defense of state (州的) privileges (特权) **going back to** (追溯到) the **Alien and Sedition Acts** ([法案]《外国人与煽动叛乱法》).

P6 ① The 8-0 objection (反对) to **President Obama** (奥巴马总统) **turns on** (原因在于) what **Justice Samuel Alito** (大法官塞缪尔·阿里托) describes (描述) in his objection (反对) as "a shocking assertion of federal (联邦的) **executive power** (行政决策权，特指美国总统所有的权力。)". ② The **White House** (白宫（美国总统官邸，位于首都华盛顿）) argued (认为) that Arizona's laws **conflicted with** (与…相冲突) its enforcement priorities (优先权), **even if** (即使) state (州的) laws **complied with** (完全遵守) federal (联邦的) statutes (法规) **to the letter**. ③ **In effect** (实际上), the **White House** (白宫（美国总统官邸，位于首都华盛顿）) claimed (宣称) that it could invalidate (废除) any otherwise legitimate (合法的) **state law** (州法) that it **disagrees with** (不认可).

①周一，最高法院以5比3的投票推翻了亚利桑那州移民法的多项条款——这对于奥巴马政府来说是一场小小的政策胜利。②但在宪法这个更重要问题上，最高法院以8：0的投票让企图打破联邦政府和各州之间权力平衡的奥巴马政府完败。

①在这场亚利桑那州和联邦政府的较量中，大多数法官推翻了颇受争议的亚利桑那州移民方案中四项有争议条款的三项，该方案要求州和地方警察执行联邦移民法。②只有华盛顿才有权“制定统一的归化条例”，以及联邦法律优先于各州法律，这两条宪法原则都是毫无争议的。③亚利桑那州却试图制定与现行联邦法律并行的州法。

①大法官安东尼·肯尼迪，以及首席大法官约翰·罗伯茨和高院自由派大法官，裁定亚利桑那州肆意挑战联邦权威。②对于被推翻的条款，多数大法官认为，国会已经慎重地“先占了领域”，所以亚利桑那州侵犯了联邦特权。

①然而，法官们表示，亚利桑那州警方有权对执法中遇到的可疑人口进行身份核查。②因为国会一直设想，联邦政府和州政府能够在移民执法上进行合作，也明确鼓励州官员和联邦同事之间能共享信息，一同协作。

①在三个投反对票的大法官中，其中两位——塞缪尔·阿里托和克拉伦斯·托马斯——同意宪法的逻辑，但是在“亚利桑那移民法的哪些条款和联邦法规相冲突”的问题上，存在分歧。②唯一的主要异议来自安东尼·斯卡利亚大法官，他为州的特权进行了更加强有力的辩护，而这些特权可以追溯到《外国人和煽动叛乱法案》。

①反对奥巴马总统的8:0投票结果主要是基于“他对联邦行政权令人震惊的声明”，正如塞缪尔·阿里托在反对意见中所描述的那样。②白宫认为，即使州法和联邦法完全相符，一字不差，亚利桑那州的法律和自己的执法优先权也是相冲突的。③实际上，白宫声称，它可以废除任何一项虽然合法但它不认可的州法。

P7 ① Some powers do **belong exclusively to** the **federal government**, and control of citizenship and the borders is among them. ② But if Congress wanted to **prevent** states **from** using their own resources to check immigration status, it could. ③ It never did so. ④ The Administration was **in essence** asserting that because it didn't want to **carry out** Congress's immigration wishes, no state should **be allowed to** do so either. ⑤ Every Justice rightly rejected this remarkable claim.

①有些权力确实只属于联邦政府，其中包括对公民身份以及对边界的控制权。②但如果国会想防止各州利用自己的资源来核查移民身份，它是可以做到的。③但它（国会）却从来没有这样做过。④实际上，联邦政府宣称的是，因为它自己不想执行国会在移民问题上的意愿，所以任何州也不允许执行。⑤每一位大法官都合理地拒绝了这个异乎寻常的主张。

Q1. Three provisions of Arizona's plan were overturned because they _____.

细节题

[A] **deprived** the federal police **of** Constitutional powers

[B] disturbed the power balance between different states

[C] overstepped the authority of federal immigration law

[D] contradicted both the federal and state policies

亚利桑那州方案中的三项条款被推翻，因为它们_____。

A.剥夺了联邦警察的宪法权力

B.扰乱了不同州之间的权力平衡

C.逾越了联邦移民法的权威

D.与联邦及州的政策均相违背

Q2. On which of the following did the Justices agree, **according to** Paragraph 4?

细节题

[A] Federal officers' duty to withhold immigrants' information

[B] States' independence from federal immigration law

[C] States' legitimate role in immigration enforcement

[D] Congress's intervention in immigration enforcement

根据第四段可知，大法官同意哪项内容？

A.联邦官员有责任隐瞒移民信息

B.各州独立于联邦移民法之外

C.各州在移民执法上的合法地位

D.国会可以对移民执法问题加以干涉

Q3. It can be inferred from Paragraph 5 that the **Alien and Sedition Acts** _____.

推理题

[A] violated the Constitution

[B] undermined the states' interests

[C] supported the federal statute

[D] stood **in favor of** the states

从第五段可以推断，《外侨和煽动叛乱法案》_____。

A.违反了宪法

B.损害了各州利益

C.支持联邦法规

D.支持州政府立场

Q4. The **White House** claims that its power of enforcement _____.

细节题

[A] outweighs that held by the states

[B] **is dependent on** the states' support

[C] is established by federal statutes

[D] rarely **goes against** state laws

白宫声称其执法权_____。

A.超过各州所拥有的权力

B.依赖于各州的支持

C.由联邦法规确立

D.很少与州法律冲突

Q5. What can be learned from the last paragraph?

推理题

[A] Immigration issues are usually decided by Congress.

[B] Justices **intended to** check the power of the Administration.

[C] Justices wanted to strengthen its coordination with Congress.

[D] The Administration is dominant over immigration issues.

从最后一段可以得出什么？

A.移民问题通常由国会决定。

B.大法官意图限制联邦政府的权力。

C.大法官希望加强与国会的合作。

D.联邦政府在移民问题上有主导权。